

PRA Glossary - M

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major business unit

means:(1) in relation to a firm, a defined segment of the firm that operates independently from other parts of the firm and has dedicated governance resources and procedures within the firm and which contains risks that are material in relation to the entire business of the firm; and (2) in relation to a group, a defined segment of the group that operates independently from other parts of the group and has dedicated governance resources and procedures within the group and which contains risks that are material in relation to the entire business of the group.

making arrangements with a view to transactions in investments

means the regulated activity, specified in article 25(2) of the Regulated Activities Order (Arranging deals in investments).

management body

means a firm's body or bodies, which are appointed in accordance with national law, which are empowered to set the firm's strategy, objectives and overall direction, and which oversee and monitor management decision-making, and include the persons who effectively direct the business of the firm.

management expenses

means all expenses, other than commission, incurred in the administration of a firm or its business.

management responsibilities map

has the meaning given in Allocation of Responsibilities 6.

managing a UCITS

means the regulated activity, specified in article 51ZA of the Regulated Activities Order (Managing a UCITS).

managing agent

has the meaning given in article 3(1) of the Regulated Activities Order.

managing an AIF

means the regulated activity, specified in article 51ZC of the Regulated Activities Order (Managing an AIF).

managing investments

means the regulated activity, specified in article 37 of the Regulated Activities Order (Managing investments).

mandatory disclosure

means an obligation in any applicable laws, regulations or rules to declare or disclose information to the public.

margin of solvency

means the excess of the value of the friendly society's assets over the amount of its liabilities, that value and amount being determined in accordance with Friendly Society - Asset Valuation, Friendly Society - Liability Valuation and Friendly Society - Overall Resources and Guarantee Fund 8.

market risk

(1) (except in the Solvency II Firms and Non-Solvency II Firms Sectors of the PRA Rulebook) means the risk that arises from fluctuations in values of, or income from assets, or in interest or exchange rates. (2) (in the Solvency II Firms and Non-Solvency II Firms Sectors of the PRA Rulebook) means the risk of loss or of adverse change in the financial situation resulting, directly or indirectly, from fluctuations in the level and in the volatility of market prices of assets, liabilities and financial instruments. [Note: Art. 13(31) of the Solvency II Directive]

market value

means the market value as determined in accordance with generally accepted accounting practice.

matching adjustment

means the adjustment to the relevant risk-free interest rate term structure to calculate the best estimate of a relevant portfolio of insurance or reinsurance obligations in accordance with: (1) the Matching Adjustment Part; and (2) deleted relevant technical information published by the PRA in accordance with regulation 3(1) of the IPR regulations.

matching adjustment eligibility conditions

means: (1) the conditions contained in regulation 4(3) to (9) and (11) of the IPR regulations; and (2) the conditions contained in 2.2 to 2.4 (inclusive) of the Matching Adjustment Part.

matching adjustment permission

means the permission granted to a firm by the PRA pursuant to section 138BA of FSMA to apply a matching adjustment for the purposes of calculating the best estimate in relation to a relevant portfolio of insurance or reinsurance obligations.

matching adjustment permission application

means an application by a firm for a matching adjustment permission.

matching adjustment portfolio

means arelevant portfolio of insurance or reinsurance obligationsand the correspondingrelevant portfolio of assets.

material outsourcing

meansoutsourcingservices of such importance that weakness, or failure, of the services would cast serious doubt upon thefirm'scontinuing satisfaction of thethreshold conditionsor compliance with theFundamental Rules.

material risk taker

means anemployee(within the meaning in section 63E(9) ofFSMA(certification of employees by authorised persons)) of a firmwhose professional activities have a material impact on thefirm'srisk profile.

material step-in entity

means astep-in entityother than animaterial step-in entity.

mathematical reserves

the provision made by aninsurerto cover liabilities (excluding liabilities which have fallen due and liabilities arising fromdeposit back arrangements) arising under or in connection withcontracts of long-term insurance.

MCR

means the minimum capital requirement (which is calibrated to the value-at-risk of a firm'sbasic own fundssubject to a confidence level of 85% over a one-year period) calculated in accordance with theMinimum Capital RequirementPart.

medical expense insurance obligation

means an insurance obligation that covers the provision or financial compensation referred to in (1) of the definition ofhealth insurance obligation.

medical expense reinsurance obligation

means areinsuranceobligation which arises from acceptedreinsurancecoveringmedical expense insurance obligations.

member

means apersonadmitted to membership of theSocietyor anypersonby law entitled or bound to administer its affairs.

method 1

means the method for calculating group solvency described inGroup Supervision 11.1.

method 2

means the method for calculating group solvency described inGroup Supervision 11.2.

MiFID business

means investment services and activities and, where relevant, ancillary services carried on by a MiFID investment firm.

MiFID II

means Directive 2014/65/EU of the European Parliament and of the Council of 15 May 2014 on markets in financial instruments and amending Directive 2002/92/EC and Directive 2011/61/EU (recast).

MiFID investment firm

The changes to this defined term are effective from 23:00 on 31/12/2020. has the meaning given in paragraph 2.1A of MiFIR.

MiFIR

means Regulation (EU) No 600/2014 of the European Parliament and of the Council of 15 May 2014 on markets in financial instruments and amending Regulation (EU) No 648/2012.

minimum guarantee fund

means an amount calculated in accordance with Friendly Society - Overall Resources and Guarantee Fund 6 for long-term insurance business and Friendly Society - Overall Resources and Guarantee Fund 7 for general insurance business, whether the required margin of solvency is greater or less than that amount.

mixed financial holding company

The changes to this defined term are effective from 23:00 on 31/12/2020. means a parent undertaking other than a regulated entity, which together with its subsidiaries, at least one of which is a regulated entity which has its head office in the UK, and other entities constitutes a financial conglomerate. [Note: Art. 212(1)(h) of the Solvency II Directive]

mixed-activity holding company

has the meaning given in point (22) of Article 4(1) of the CRR.

model limitation adjustment

means, in respect of a firm or group where part or all of its SCR (or group SCR, as appropriate) is calculated using an internal model, a capital adjustment calibrated and applied in the internal model which contributes to the calculation of its SCR (or group SCR, as appropriate), and that is intended to ensure that it complies with Solvency Capital Requirement - General Provisions 3.3 and 3.4, whether directly or by application of Group Supervision 11.2.

money

means any form of money, including cheques and other payable orders.

money-market instruments

means those classes of financial instruments which are normally dealt in on the money market, such as treasury bills, certificates of deposit and commercial papers and excluding instruments of payment. [Note: article 4(1)(19) of MiFID]

month

This term is defined externally, please refer to: Schedule 1, Interpretation Act 1978

mortality risk

means the risk of loss, or of adverse change, in the value of insurance obligations, resulting from changes in the level, trend or volatility of mortality rates, where an increase in the mortality rate leads to an increase in the value of insurance obligations.

mortgage insurance

means credit insurance that provides cover to lenders in case their mortgage loans default.

motor vehicle liability

means the class of contract of insurance, specified in paragraph 10 of Part I of Schedule 1 to the Regulated Activities Order.

MTF

The changes to this defined term are effective from 23:00 on 31/12/2020. means a multilateral system, operated by an investment firm or a market operator, which brings together multiple third-party buying and selling interests in financial instruments - in the system and in accordance with non-discretionary rules - in a way that results in a contract in accordance with provisions implementing Title II of MiFID II.

mutual

means an insurer which: (1) if it is a body corporate has no share capital (except a wholly owned subsidiary with no share capital but limited by guarantee); or (2) is a friendly society; or (3) is a society registered or deemed to be registered under Co-operative and Community Benefit Societies Act 2014 or the Industrial and Provident Societies (Northern Ireland) Act 1969.

mutual society

This term is defined externally, please refer to: Section 138K(5) of the Financial Services and Markets Act 2000

mutual-type group

The changes to this defined term are effective from 23:00 on 31/12/2020. means a group of undertakings that is based on the establishment, contractually or otherwise, of strong and sustainable financial relationships among those undertakings, and that may include mutual or mutual-type associations, provided that: (1) one of those undertakings effectively exercises, through centralised coordination, a dominant influence over the decisions, including financial decisions, of the other undertakings that are part of the group of undertakings; and (2) the establishment and dissolution of such relationships are subject to prior approval by the PRA, where the undertaking exercising the centralised coordination shall be considered as the parent undertaking, and the other undertakings shall be considered as subsidiary undertakings. [Note: Art. 212(1)(c)(ii) of the Solvency II Directive]